

SENATE No. 1476

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to provide clarification to Massachusetts General Laws chapter 80.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joyce A. Tomaselli</i>		
<i>Gracemarie R. Tomaselli</i>		
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/17/2025</i>

SENATE No. 1476

By Mr. Tarr (by request), a petition (accompanied by bill, Senate, No. 1476) of Joyce A. Tomaselli, and Gracemarie R. Tomaselli, for legislation to provide clarification of betterments with regard to sewer projects. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1326 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to provide clarification to Massachusetts General Laws chapter 80.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Massachusetts General Laws Chapter 80 Section 1 as appearing in the 2022
2 edition is hereby amended by striking it in its entirety and replacing it with the following:-

3 Section 1. Whenever a limited and determinable area will receive a particular benefit or
4 advantage, other than the general advantage to the community, from a single public project
5 improvement made by or in accordance with the formal vote at Town Meeting or City Council or
6 order of a board of officers of the commonwealth or of a county, city, town or district, and such
7 original assessment order for construction of the sewer states that betterments are to be imposed
8 as assessments for the construction of the sewer be assessed for the improvement. The board
9 shall in the order for the construction of the sewer assessment designate as the owner of each
10 parcel the person who was liable to assessment named in the order therefor on the preceding

January first under the provisions of chapter fifty-nine. Starting the day after the assessment order vote, the tax collector must include in all municipal lien certificates that improvements have been voted, with regards to which there will probably be liens as an obligation chargeable upon the land as defined in MGL c. 60 s. 23, this certificate releases liability for new buyers whether or not this municipal lien certificate is recorded at the registry of deeds. Such assessing board shall within six months after the completion of the sewer project improvement determine the value of such benefit or advantage to the land within such area and determine final costs of construction, less grants, and send a notice of final net actual assessment and assess upon each parcel thereof a proportionate share of the cost of such improvement, and shall include in such cost all damages awarded therefor under chapter seventy-nine; but no such assessment shall exceed the amount of such adjudged benefit or advantage.

SECTION 2. Massachusetts General Laws Chapter 80 Section 2 as appearing in the 2022 edition is hereby amended by striking it in its entirety and replacing it with the following: -

Section 2. An assessment order for the construction of the sewer under section one which states that betterments are to be assessed for the improvement shall contain a description sufficiently accurate for identification of the area which it is expected will receive benefit or advantage, other than the general advantage to the community, from such improvement, and shall refer to a project plan of such area which includes only the contracts within the project, and shall contain an estimate of assessment for the betterments that will be assessed upon each parcel of land within such area; and such assessment order to construct, the project plan and estimated assessment shall be recorded, within ninety days from the adoption of this assessment order, or from the acceptance by a town of the laying out, relocation or alteration of a way in case such acceptance is required before the establishment thereof, in the registry of deeds of every county

or district in which the benefited area is situated. No betterments shall be assessed for such improvement unless the order for the construction of the sewer project, project plan and estimate are recorded at the Registry of Deeds to create a lien. The assessment lien for the construction of a sewer relates back from the time of the formal vote of the assessment order for construction of the sewer as herein provided, nor upon any parcel of land not within such area, nor for a greater amount than such estimate or actual final net construction costs. As to third persons without actual knowledge of the installation of the sewer improvement, such as subsequent mortgagees and purchasers, the assessment is only valid if the board complies with recording the assessment order of construction at the registry of deeds to create a lien.

SECTION 3. Massachusetts General Laws Chapter 80 Section 4 as appearing in the 2022 edition is hereby amended by striking it in its entirety and replacing it with the following: -

Section 4. Within a reasonable time after making the final net actual assessment the board shall certify to the assessors the list of final actual assessments upon land in each town who shall forthwith commit the final net project cost less grants received actual assessment such assessments with their warrant to the collector of taxes thereof, and he shall forthwith send notice of final committed assessment in accordance, except as to the date of notice, with section three of chapter sixty, to the person designated under section one as the owner of each parcel named in the assessment order of construction assessed, and any demand for the payment of such final assessment shall be made upon such person. The notice of final committed actual assessment must be sent by certified mail to the liable owner named in the assessment order for the construction of the sewer, parcel address and ID, amount owed, the date of the assessment order vote to construct the sewer, the vote to construct the sewer with the area within the project plan and contracts included in the project. The date of the bill, payment due date and options, interest

rate and abatement rights. The notice of final committed actual assessment shall also be sent by certified mail to the current property owner of record, if different from assessed liable owner, with an explanation of the assessment purpose (project), and provided with a form to request an apportionment from the assessor and also notified of abatement rights. Except as otherwise herein provided, the collector shall have the same powers and be subject to the same duties with respect to such final assessments as in the case of the annual taxes upon real estate, and the law in regard to the collection of the annual taxes, to the sale of land for the non-payment thereof and to redemption therefrom shall apply to final assessments made under this chapter, so far as the same are applicable; but the owner of land shall not be personally liable for the assessment thereon, because a special assessment or betterment must be secured by a lien on the property benefited. To enforce collection, the Assessing Board must establish a valid lien at the Registry of Deeds of the assessment order to construct the sewer Every collector of taxes receiving a list of assessed owners named in the assessment order of construction and warrant from the assessors shall collect the final assessment therein set forth, and at such times as the assessors shall direct, or in the case of assessments relating to state funded projects, as the collector of taxes and the board determine shall pay over to the treasurer of the body politic on behalf of which the assessment was made the amounts collected by him.

SECTION 4. Massachusetts General Laws Chapter 80 Section 5 as appearing in the 2022 edition is hereby amended by striking it in its entirety and replacing it with the following: -

Section 5. The liable owner of any real estate upon which betterments have been assessed whose name appears in the order of construction or the current owner not named in the order of construction and with an assessment order lien recorded at the registry of deeds,

may, within six months after notice bill of such final assessment has been sent out by the collector, file with the board a petition for an abatement thereof, and the board shall grant such abatement as may be necessary to make such assessment conform to section one. Such petition may be filed with the clerk or secretary of the board, or delivered by mail or otherwise at their office. The board shall within ten days after their decision upon the petition give written notice thereof to the petitioner. If a final actual assessment is abated by the board the assessment so determined shall stand as the final actual assessment upon the land, and if it has not been paid shall be collected in the same manner as the original assessment. If the original assessment has been paid, the person by whom it was paid shall be reimbursed by the body politic on behalf of which it was assessed to the amount of the abatement allowed, with interest at the rate of six per cent per annum from the time of payment.

SECTION 5. Massachusetts General Laws Chapter 80 Section 12 as appearing in the 2022 edition is hereby amended by striking it in its entirety and replacing it with the following: -

Section 12. Betterment Assessments made under this chapter shall constitute a lien upon the land assessed. The lien shall take effect upon the recording at the Registry of Deeds the original order of assessment to construct the sewer stating that betterments or special assessments are to be assessed for the improvement. A special assessment or betterment is secured by a lien on the property benefited. To enforce collection, the assessing board (city/town council, board of selectmen, water/sewer/road commissioners) must establish a valid lien.

Notwithstanding any other provision of this section or chapter eighty-three, if a county, city, town, or district elects to send notice of the net committed assessment to the owner of the land assessed indicating the amount of the assessment for the betterment, and said owner pays

101 the amount due, no lien shall be recorded. The assessors shall indicate on the next tax bill that the
102 amount of the betterment assessment has been paid and no further notation or demand shall be
103 made on land so assessed. Except as otherwise provided, such lien shall terminate at the
104 expiration of two years from October first in the year in which the assessment is first placed on
105 the annual tax bill under section thirteen or, if an assessment has been apportioned, from October
106 first in the year in which the last portion is so placed upon the annual tax bill, whichever is later,
107 if in the meantime in either case the estate has been alienated and the instrument alienating the
108 same has been recorded. If there is no recorded alienation within such period, the lien shall
109 continue until there is a recorded alienation. If the validity of an assessment made under this
110 chapter is called in question in any legal proceeding to which the board which made the
111 assessment or the body politic for the benefit of which it was made is a party, instituted prior to
112 the expiration of the lien therefor, the lien shall continue until one year after the validity of the
113 assessment is finally determined, even though an alienation be recorded in the meantime. If at
114 any time while a lien established by this section is in force, a sale or taking cannot in the opinion
115 of the collector be legally made because of any federal or state law or because of any injunction
116 or other action of, or proceeding in, any federal or state court or because of the action of any
117 administrative body, the lien shall, if the statement provided for in section thirty-seven A of
118 chapter sixty is filed, continue as provided in said section thirty-seven A, subject, however, to
119 any lawful action under any paramount authority conferred by the constitution or laws of the
120 United States or the constitution of the commonwealth. If the time for payment of an assessment
121 is extended under section thirteen A or under any general or special law, the lien shall, if the
122 statement provided for in section thirty-seven A of chapter sixty is filed, continue as provided in
123 said section thirty-seven A. A lien under this section may be dissolved by filing for record in the

124 registry of deeds of the county or district where the land subject to the lien lies a certificate, in a
125 form approved by the commissioner of revenue, from the collector of taxes that the assessment,
126 constituting the lien, together with any interest and costs thereon, has been paid or legally abated.
127 The collector of taxes shall charge four dollars for each certificate so issued, and the money so
128 received shall be paid into the town treasury.